

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:
Date Purchased:

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GADELL GIBBS,

SUMMONS

Plaintiff,

Plaintiff designates
Kings County as the place of
trial.

against

CITY OF NEW YORK, Detective John Santiago, ADA
MIREILLE DEE, and P.O. JOHN DOES 1-4,

The basis of venue is:
Plaintiff's Residence

Defendants,

Plaintiff resides at:

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County of New York

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, NY
November 15, 2018

RAWLINS LAW, PLLC

Gary Rawlins

Gary Rawlins, Esq.

Attorney for Plaintiff

Gadell Gibbs

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White Plains, NY 10604

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Fax (347) 332-1592

TO:

CITY OF NEW YORK
Zachary Carter
New York City Law Department
100 Church Street
New York, New York 10007

Detective John Santiago

P.O. JOHN DOES 1-4

ADA Mireille Dee

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:
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Gadell Gibbs,

**VERIFIED
COMPLAINT**

Plaintiff,

against

CITY OF NEW YORK, Detective John Santiago, ADA
MIREILLE DEE, and P.O. JOHN DOES 1-4,

Defendants.

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Plaintiff, by his attorney, **GARY N. RAWLINS**, as and for his Verified Complaint, respectfully alleges, upon information and belief that:

1. The Plaintiff, **Gadell Gibbs**, at all times herein mentioned was and still is a resident of the County of Kings and the State of New York.

2. At all times mentioned herein, Defendants **CITY OF NEW YORK**, and others not presently known to Plaintiff (**P.O. JOHN DOES 1-15**) were and still are residents of the County of New York and the State of New York.

3. At all times herein mentioned, Defendant **THE CITY OF NEW YORK ("NYC")**, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.

4. Prior to the commencement of this action, a notice of claim in writing was served on behalf of Plaintiff **Gadell Gibbs** upon NYC in accordance with Section 50-e of the General Municipal Law.

5. That notice of claim was served on December 22, 2017.

6. Within ninety days of (90) of October 25, 2017 (the end of the malicious prosecution and a verdict of Not Guilty on All Counts), a notice of claim in writing was served on behalf of Plaintiff **Gadell Gibbs** upon **NYC**, in accordance with Section 50-e of the General Municipal Law alleging malicious prosecution as well as 14 U.S.C. §1983 claims.

7. Prior to the commencement of this action, notice of the intention of Plaintiff **Gadell Gibbs** to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by the New York City Charter to adjust such claims, was served on behalf of Plaintiff upon **NYC**.

8. Although more than thirty (30) days have elapsed since service of such notice of claim, Defendants neglected and have refused to pay said claim or adjust same.

9. A hearing pursuant to General Municipal Law 50-h was held on March 26, 2018.

10. This action is commenced within one (1) year and ninety (90) days from October 25, 2017, the date of the end of malicious prosecution.

11. At all relevant times, all Defendants were employees of Defendant **CITY**, and the named defendants were acting for, upon and in the course of and in the furtherance of the business of their employers and within the scope of their employment.

12. The individual Defendants were acting pursuant to the authority conferred upon them by defendant police department, New York County District Attorney's Office , defendant department of corrections and defendant municipality.

13. At all times herein mentioned, Defendants stood in such a relationship with each other in providing law enforcement and prosecution services as to make each liable for the acts and omissions of the others.

14. Defendant NYC is vicariously liable for the acts of Defendants.

FACTS

15. The defendants, each individually and jointly racially profiled and maliciously prosecuted Gadell Gibbs in an effort to force him to testify against co-defendant Ronald McPhatter and provide information about the record label for which Mr. Gibbs worked. Specifically, the defendants wanted Mr. Gibbs to testify about the inner workings of the label as they considered the rap label to be a gang. Despite the death of co-defendant Ronald McPhatter, the defendants continued to prosecute Mr. Gibbs, never informing the jury that the co-defendant was dead and never amending the charges.

16. Mireille Dee and Detective John Santiago, Shield 823 charged Mr. Gibbs with criminal possession of a Weapon in the Second Degree (PL 265.03(1)(b)), Assault in the Second Degree (PL 120.05(2), attempted murder (Penal law 110/125.25(1) an attempted assault (PL 110/120.10(1)).

AS AND A FIRST CAUSE OF ACTION FOR STATE LAW CLAIMS OF MALICIOUS PROSECUTION

17. Upon information and belief, the defendants presented incomplete evidence to the grand jury. The defendants had no evidence that the plaintiff committed a crime. The videotapes of the incident did not provide any evidence that Mr. Gibbs committed a crime.

18. After viewing the videotape the jury returned a not guilty finding on all crimes alleged.

19. As a result of the malicious prosecution and abuse of process, Plaintiff spent nine months in jail.

20. By reason of the foregoing, Plaintiff **Gadell Gibbs** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS

21. Plaintiff **Gadell Gibbs** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

22. The Defendants, and each of them, acted outrageously for their above-stated roles in the false arrest, false imprisonment, detainment, charging, failing to investigate, failure to adhere to law, rule and regulations known to them.

23. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false, without merit, and unprovable in light of the videotape, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to the Plaintiff, with the sole purpose of compelling him to provide testimony against his co-defendant and a rap record label.

24. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff **Gadell Gibbs**.

25. Said harm did in fact occur in this case, in that Plaintiff **Gadell Gibbs** was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff have had to seek support and counseling within the family.

26. By reason of the foregoing, Plaintiff **Gadell Gibbs** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR AN THIRD CAUSE OF ACTION FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS

27. Plaintiff **Gadell Gibbs** repeats and re-alleges each and every allegation contained in paragraphs the above with full force and effect as if each were more fully set forth herein.

28. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff **Gadell Gibbs** well being, and were based on a lack of concern and/or ill-will towards Plaintiff.

29. Plaintiff **Gadell Gibbs** therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS FOR A FOURTH CAUSE OF ACTION FOR FEDERAL CLAIMS
PURSUANT TO 42 U. S. C. 1983 for FALSE ARREST, FALSE
IMPRISONMENT, MALICIOUS PROSECUTION AND ABUSE OF
PROCESS**

30. This is a civil litigation action seeking damages against defendants for committing acts on or about November 17, 2015 under color of law, and depriving plaintiff of rights secured by the Constitution and laws of the United States. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to U.S.C. § 1083 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the State of New York and the United States.

Defendants, while acting in their capacities as policemen and prosecutors of the City of New York, State of New York, deprived Plaintiff of his liberty without due process of law, thereby depriving Plaintiff of his rights, privileges and immunities as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. The Court has jurisdiction of this action under 42 U.S.C. § 1983, 28 U.S.C. § 1343, and 28 U.S.C. § 1331.

31. Plaintiff asserts a Monell Claim against the City of New York as prior to on or about November 17, 2015 the date of the plaintiff's arrest, the City of New York, the New York Police Department and the New York District Attorney's office and the named defendants developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of rap musicians, which caused the violation of Mr. Gibb's rights. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen's complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by the City of

New York. It was the policy and/or custom of the City or New York to inadequately supervise and train its police officers, managers and employees including Detective John Santiago thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrests as possible without concern for the validity of those arrests. The respondent's agencies did not require appropriate in-service training or retraining of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convenience at the expense of others. As a result of the above described policies and customs, police officers of the City of New York, including the respondent officers, believed that their actions would not be properly monitored by supervisors and that misconduct would not be investigated or sanctioned, but would be tolerated. The above described policies and customs demonstrated a deliberate indifference on the part of policy makers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of Claimant's right alleged herein. **Gadell Gibbs** was injured by reason of the negligence, recklessness, careless, and malicious prosecution perpetrated by each and every one of the defendants involved individually and jointly, their agents, servants employees and/or licensees in the control, supervision, hiring and training of the officers and employees who were deliberately indifferent to Mr. Gibb's civil rights.

32. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of the City of New York to the constitutional rights of

persons within the City targeted by the “Hip Hop Police” (which racially profiled Mr. Gibbs) , and were the cause of the violations of plaintiff’s rights.

**AS AND FOR A FIFTH 42 USC 1983 CAUSE OF ACTION FOR FALSE ARREST
MALICIOUS PROSECUTION, ABUSE OF PROCESS AS AGAINST ALL
DEFENDANTS IN VIOLATION OF PLAINTIFF’S UNITED STATES
CONSTITUTIONAL RIGHTS**

33. Plaintiff **Gadell Gibbs** repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

34. Plaintiff **Gadell Gibbs** sues all Defendants in their capacities.

35. At all relevant times, Defendants acted forcibly in apprehending, arresting and falsely imprisoning Plaintiff.

36. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

37. The acts complained of deprived Plaintiff of his constitutional rights: not to have summary punishment imposed upon him; to due process of law; to equal protection of the law; not to be subject to an unlawful search and seizure; and not to be subject to malicious prosecution.

38. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff..

39. Defendants issued legal process to place plaintiff under arrest.

40. Defendants arrested Plaintiff in order to obtain a collateral objective outside the legitimate ends of the legal process. The defendants failed to investigate the case, to properly evaluate the evidence. Additionally, the defendants coerced the alleged victim to make a complaint despite her statement that she did not want to do so.

41. Defendants acted with intent to do harm to Plaintiff without excuse or justification.

42. As a result of the foregoing, Plaintiff sustained, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights. As a result of the violation of his constitutional rights, the plaintiff was damaged in an amount in excess of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR CONSPIRACY TO VIOLATE
CIVIL RIGHTS PURSUANT TO 42 U.S.C. § 1985 and 1986**

CONSPIRACY TO VIOLATE PLAINTIFF'S CIVIL RIGHTS

43. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraph the paragraphs above as if the same were more fully set forth at length herein.

44. Defendants conspired and acted in concert to do whatever was necessary, lawful or not, to cause the arrest, prosecution, detention of Plaintiff Gadell Gibbs.

45. Throughout the period of conspiracy, the Defendants pursued their objectives with actual malice toward Plaintiff, with utter indifference to and disregard for Plaintiff's rights under the Constitution and laws of the United States, without probable cause or reasonable cause to believe Plaintiff guilty of any crime. Their only purpose was to obtain cooperation to convict the co-defendant and to obtain information about Plaintiff's employer.

46. The aforesaid conduct of the Defendants operated to deprive Plaintiff of important and well established rights under the Constitution and laws of the United States including, but not limited to, his rights:

- (a) Not to be deprived of his liberty or to be arrested, detained or imprisoned except upon probable cause to believe him guilty of a crime, under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution;
- (b) Not to be deprived of his liberty or to be arrested, indicated, or prosecuted based upon evidence fabricated by a government official; and
- (c) Not to be deprived of his liberty or be arrested, prosecuted or imprisoned based upon the testimony of witnesses who had been illegally influenced for their testimony.

The foregoing violations of Plaintiff's constitutional rights by Defendants directly and proximately caused Plaintiff's arrest, detention, and deprivation of liberty.

WHEREFORE, Plaintiff demands judgment against the Defendants in each separate cause of action in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter; together with the costs and disbursements of this action.

Dated: White Plains, NY
November 15, 2018

RAWLINS LAW, PLLC
Gary Rawlins
Gary Rawlins, Esq.
Attorney for Plaintiff
Gadell Gibbs
777 Westchester Ave, Suite #101
White Plains, NY 10604
Tel :(212) 926-0050

TO:

CITY OF NEW YORK

Zachary Carter

New York City Law Department

100 Church Street

New York, New York 10007

ATTORNEY'S VERIFICATION

Gary N. Rawlins, an attorney admitted to practice in the Courts of the State, and attorney for Plaintiff states:

That your affirmant has read the foregoing instrument and knows the contents thereof; that the same is true to your affirmant's own knowledge except as to the matters which are stated therein to be alleged on information and belief, and as to those matters your affirmant believes them to be true. The source of your affirmant's information and belief is an investigation made with respect to the facts in this action.

That the reason this Verification is made by affirmant and not by the Plaintiff is because the Plaintiff does not reside within the county where I maintain my Office.

The undersigned affirms that the foregoing statement is true, under penalties of perjury.

Date: White Plains, NY
November 15, 2018

Respectfully Submitted,

/s/
Gary N. Rawlins